

Adv. Shalini L Tripathi

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License No: MAH/9337/2024

DATE: 07.21.2025

BY RPAD/POST/EMAIL

To,

XYZ Enterprises Pvt. Ltd.

dc

Email: N/A

Subject: Legal Notice for Breach of Contract and Damages Suffered

Under instructions and on behalf of my client, Isha Tripathi residing at dsc, I hereby serve upon you the following notice:

1. My client states that she had entered into a contractual agreement with your esteemed organization, XYZ Enterprises Pvt. Ltd., for the provision of certain services.
2. My client states that you had promised to deliver these services within a stipulated time frame and had assured her of the quality and efficiency of the same.
3. My client states that she had made the necessary payments as per the terms of the contract, trusting your organization's reputation and the promises made.
4. My client states that the contract was duly signed by both parties, thereby creating a legally binding agreement between them.
5. My client states that she had been in regular contact with your organization, following up on the progress of the services to be provided.
6. My client states that she had been conducting regular checks and visits to ensure the quality and timeliness of the services.
7. My client states that despite her efforts, she has recently faced numerous issues with the services provided by your organization, including delays and substandard quality.
8. My client states that she has made several attempts to contact your organization to rectify these issues, but to no avail.
9. My client states that she had specifically required the services to be completed within the agreed time frame, as per the terms of the contract.
10. My client states that your organization has failed to respond to her concerns and has not taken any steps to rectify the issues.
11. My client states that your conduct amounts to cheating, fraud, breach of trust, and misrepresentation and therefore attracts the provisions of

misrepresentation, and therefore attracts the provisions of:

- a. Section 316 BNS (Cheating)
- b. Section 317 BNS (Fraud)
- c. Section 319 BNS (Criminal Breach of Trust)

12. My client states that your actions also constitute deficiency in service under the Consumer Protection Act, 2019, and violate the principles of good faith and fair dealing under Indian Contract Law.

13. My client states that she demands immediate rectification of the issues and completion of the services as per the terms of the contract.

14. My client states that she further demands that you compensate her for the damages suffered due to the delay and substandard quality of the services.

15. My client states that you are required to pay the compensation amount to her by bank draft or RTGS/NEFT transfer to her account within 15 days from the date of receipt of this notice.

16. My client states that if you fail to comply with the above demands, she shall be constrained to initiate appropriate civil and criminal proceedings against you before the competent court of law, including filing a complaint under the relevant sections of the Bharatiya Nyaya Sanhita (BNS) and under the Indian Contract Act, 1872, at your risk as to costs and consequences.

17. My client states that this notice is issued to you without prejudice to all other legal rights and remedies available to her under the applicable laws.

18. My client states that a copy of this legal notice is retained in my office for record and further necessary action.

Yours sincerely,

Adv. Shalini L. Tripathi



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